

Examining Compulsory Voting: Brazil's Unique Democratic Approach

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Brazil is the most populous country in the world to use compulsory voting. With a population of more than 206 million and an electorate of 170 million, the 27 Brazilian states obey to a very different form of democratic law than the one observed in voluntary voting models that make up the majority of traditional European democracies. Understanding the nature and the reasons behind differences between these systems is my goal in this paper. In this essay, I argue that compulsory voting influences habit formation, electoral engagement and representation in Brazil. To support this claim, I will discuss socio-economic disparities inherent to Brazil's electoral system, consider how democratic legitimacy applies to mandatory voting models and analyse existing research made on this topic. I would also like to clarify that the terms compulsory and mandatory will be used interchangeably in this paper and refer to the legal obligation to perform certain actions. The structure of the essay is as follows: first I will examine why and how Brazil adopted the mandatory voting policy, then I will explore the gap between the intended consequences and the actual results of this system. Finally, I will draw on these findings to explore the subject of compulsory voting at large.

Compulsory voting has been implemented in Brazil since 1934. Ever since, elections are held every 24 months to decide in turns of new municipal or general representatives: meaning every 2 years in October, every Brazilian of 16 years or older can have a say in either a federal or a state level position. Now if it might seem strange to mention this practice as a choice after everything

mentioned above, it is because mandatory voting does not apply to all cases. Registration and electoral participation are only mandatory for 18 to 69 years old; they are voluntary for the 16 to 17 years old, for 70 years old or older and lastly to those who declare themselves illiterate or members of indigenous tribes. Just like mandatory electors, voluntary electors equally benefit from the direct consequences of this system by casting a single vote holding as much power as the next, the total vote count determining the election of a representative just like in any representative democracy. However, failure to vote or register on electoral lists incurs a fine for mandatory electors, who are also denied right to a range of state services and bureaucratic advantages if they do not comply.

The implementation of a mandatory voting system was perceived as a beneficial in Brazil as it was believed to strengthen democracy, comparatively to older failing models. I support this idea of implementation by comparison because of Brazil's history. Constantly adapting to new realities as the colonial period, the independence, and the dictatorship unfolded always gave Brazilians an idea of how things could be better or worse. Hence after the dictatorship censored a vast majority of the country to silence for decades, making sure the country was moving forward on unanimous accord became a pressing concern. Where most political systems would deem democracy as perfectly suited for that and simply adopt a system that allows everyone to participate, realizing that was not enough led Brazil to push the concept further. In order to tackle a collective action problem that slowly decreases voter turnout through time in democracies, making the sanction greater than the advantage gained by free riding turns complying with the system into a rational decision. This way, election results were invariably a direct effect of the whole population's choice. With a consistent 80 percent turnout rate at each Brazilian election that seems to translate the vision behind mandatory voting, what can a deeper look into this system tell us? The most evident answer is how firmly compulsory voting is attached to democracy through central institutions of Brazilian power. Compulsory voting was mandated in 1988 by the Brazilian constitution, furthermore the consequences for not complying with it also rely on public services: failing to pay the initial fine results in a ban from enrolling or renewing registration in public schools and universities, taking civil service exams, bidding for public tenders, receiving public sector salaries, requesting loans from public banks, and obtaining a passport or ID card (Dunaïski, 2021). One of the issues that need to be addressed is the effect of choosing this kind of incentives on different socio-economic groups within the Brazilian population. Indeed, the prohibited access to public resources is more

effective than the fine that is unlikely to deter even the poorest fringes of Brazilians to vote, as each missed election (each turn of the two-turns election is counted separately) costs R\$3.51 (a little less than an American dollar) (Dunaiski, 2021). This makes it clear the intended consequences rely on a punitive bureaucratic procedure generating - more time than financial - loss.

After having explored the nature and mechanisms of mandatory voting in Brazil, let us now pay attention to the intended consequences on Brazilian society. Voting or abstaining from an election is habit forming; this premise entails choice persists over time. Besides, voting is also self-reinforcing: habits acquired during the first few electoral experiences strongly determine the trajectory of an individual's voting records throughout their lifetime. Therefore, an effective mechanism to counter low turnout is to make sure young citizens who have not formed habits yet have high turnout rates. Their increased receptiveness to election-related information and to mobilizing agents such as medias, political parties and peers, added to psychological factors such as a first-time voting excitement should prepare them to be consistent voters on the long run. Compulsory voting can be argued to be useless for this end, but since not all youth is compelled to vote equally and socio-economic groups make disparities that threaten to exclude parts of the population from accurate representation, compulsory voting "eliminates the representational biases stemming from unequal rates of participation" (Cepaluni 2016).

Establishing goals does not mean attaining them, and a critical assessment of the feasibility of this model has been the subject of constant research among political scientists throughout the last decades. According to the studies consulted for the redaction of this paper, there are still unanswered questions arising from the correlation of empirical indicators that depending on the analysis are presented as causal or disproven as unrelated. This led political scientists to formulate various plausible hypotheses which are still hard to answer: could mandatory voting increase inequalities? Could it worsen low turnout problems? Does it lessen habit formation over time? Depending on the way one sorts voting data, which Brazil kindly enough makes relatively easy to access, conclusions vary. Nevertheless, comparing the evidence from elections of the past 20 years with the expected effects of compulsory voting will make apparent some gaps in the initial logic of the project.

Secondly, the mode chosen to implement compulsory voting in Brazil have shaped the effects of this system on electoral habits. In this part, we will delve in the consequences of rendering vote compulsory in Brazil by combining present evidence of research on Brazilian voting systems with legitimate reservations on the enforcement of vote.

Regional inequalities are very salient in Brazil: the GDP per capita of the richest electoral unit, Brasilia, is nine times higher than the GDP of Piaui, the poorest electoral unit. Additionally, a 2006 national household survey indicates 10.4% of adults in Brazil are illiterate. Similar surveys have shown “educated Brazilians are more likely to use state services that would be affected by failure to vote” (Cepaluni, 2016). The biggest factors at play in elections are all laid out: wealth and education have traditionally been the biggest segregational determinants. Even when only looking at these two, a problem becomes apparent in the educational disparities: a citizen calculates the utility of registration in electoral lists by estimating whether they will need to transact with the authorities in the future, in order to obtain desirable benefits (Power, 2009, p.106). However, the most likely to seek government jobs, to use passports for travel, and to enroll in universities are better educated and wealthier parts of the population, incentivizing them more than illiterates, who on the other hand can even declare their status to stop voting altogether.

Furthermore, scaling down the research to observe subnational level data allows to address intranational variations in mandatory voting. In addition to the most common variables discussed above, variation in law enforcement is accounted for using measures such as the effectiveness of juridical institutions and the variation of compulsoriness of voting across social groups. In the *Journal of Politics in Latin America*, Timothy J. Power uses this technique to narrow down choices available to the illiterate population. They can either declare their status and be excused for absenteeism, or apply for an electoral title and abide by the mandatory voting rules, or do neither of these by not declaring anything. This design makes it easier for external incentives to influence one’s decision: dependent citizens can be electorally mobilized to act in a certain way, making the threat of clientelism a serious matter. Similarly, it was found that target mobilization focusing on the electors of marginal seats was more effective. This proves higher turnout rates does not mean that mandatory voting is efficient: this system could give rise to such results because of influences not perceived in voluntary voting models. Indeed, “Whilst [literature on voluntary voting systems] has found that voting in one election increases one’s propensity to vote in the future, I provide

first causal evidence of an opposite association under compulsory voting.” says Maurice Dunaïski (Dunaïski, 2021). This proves examining compulsory voting systems is too different from voluntary ones and what is true for one might not apply for the other. Since most Latin American democracies appeared in the last 150 years, and 15 out of 18 of the region’s countries use some form of mandatory voting - making up half of the world’s mandatory voting systems – these models are based on observations made from more classical democratic models, which are most often voluntary.

If the reasons above explain the potential failures of mandatory voting, what are their practical shapes? First, the transformative potential of mandatory voting is limited: a possible interpretation of the results produced in the past decade make it apparent that mandatory voting fails to be habit forming. Worse, a slight negative effect on turnout in the subsequent elections was found, explained by the fact that the intended boost during the first elections was only significant among better educated male citizens, with effects twice as large in competitive municipalities. Lower results in uncompetitive municipalities even though legislation remains constant shows turnout is affected by political actors rather than by the system itself.

Ultimately, does mandatory voting tackle low turnout problems? A noteworthy statistic when considering this is that 10 million Brazilians are legally voluntary voters inside the compulsory voting system. Aside from a source of nightmares for political scientists trying to isolate variables for to test their research, this also means the results are not generalizable to models of other countries. More specifically, because states justify and implement mandatory voting differently according to what they consider to be the needs of their populations, comparison of transnational electoral data does not help answer this question. Nevertheless, what studies has found in Brazil is that the first-time voting boost disappears after 2 elections, partly because the novelty effect of being compelled to vote gradually disappears. If mandatory voting does not increase habit formation, who else could tackle low turnout problems? The other advantage created by this model was increased representation across socio-economic categories, with incentives to comply with the system supposedly preventing an elite minority from being overrepresented. However, low-income voters still tend to participate less in elections: basing the compliance determinant on state services means that in any political writing, “[t]he higher the percentage of workers in the formal labor force, the greater is the probability that these citizens will need to

transact with the State" (Power, 2009) and consequently the higher the overall compliance with compulsory voting. Hence, compulsory voting cannot be proven to tackle low turnout problems.

Thirdly, I will engage in a broader discussion about the usefulness of mandatory regime. First, I argue this debate on the position of the state has been nuanced and has no clear answer. In *Compulsory voting: for and against*, the authors examine different arguments defending and refuting the premise, and some are worth mentioning here. The duty to vote argument stipulates that if citizens have a moral duty to vote, then the government may force them to do it; hence, the government may force citizens to vote (Brennan and Hill, 2014). On the other hand, it can also be said that states should not intervene when someone breaks moral duty or acts immorally as there is a difference between duty and enforceable duty. Alternatively, Lacroix argues forcing a citizen to vote is a violation of their negative liberty but could be worthwhile if it enhances a form of positive liberty. With this approach, considering that voting is not a moral but a civic duty as it is the case in Brazil gives legitimacy to enforce the system. Also, the connection of mandatory voting to core Brazilian institutions like the constitution acts as the positive liberty mentioned by Lacroix.

The gratitude argument stipulates that those failing to vote are ungrateful for the hard-won liberties their ancestors died for, and since people should be grateful, they should be compelled to vote (Brennan and Hill, 2014). This seems to entail a form of anti-free riding logic: good governance, which leads to the consolidation of the liberties just mentioned, is a public good that no one should free ride on. The argument then implies nonvoters are free riders and since their actions are condemnable, they should be condemned. I find some hypocrisy in invoking the only value that works against this argument as its foundation: should hard-won liberties not be enjoyed? How can liberty be preserved and honored through a restraining system and not through the expression of one's opinion? There is a point to make about the legacy of democracy and the struggle for values now taken for granted, but the best way to live up to them is to live by these morals, not work against them for the sake of their preservation.

Besides, a self-selection process in voluntary voting systems keeping less informed voters out of the decision-making process could be inverted by compulsory voting. Some people tend to be ignorant, especially those in the lowest quintile as education and wealth are often correlated. If a certain level of knowledge is necessary to cast an informed vote, but some abstain from voting

because they judge their own knowledge as insufficient to fulfill this requirement, a form of self-selection process appears (Brennan and Hill, 2014). While this keeps less informed voters out of the decision-making process in voluntary voting systems, maybe the obligation of voting in a compulsory system forces all voters to fill that knowledge gap by informing themselves more. Of course, this is only a possibility, but measuring it and establishing its veracity would require comparing the outcomes of a same policy decision or election under a voluntary and a mandatory voting system to evaluate which electorate was more informed which proves to be difficult.

Having raised these questions, it also seems reasonable to face the following one: does a higher turnout necessarily mean a greater democratic legitimacy of the electoral outcome? If a low turnout results in a legitimacy crisis for a state, as the results can be contested by a consensus claiming the unrepresentativeness of the election, does the opposite scenario reinforce the state? Here, the opportunity to cast a vote is what counts as legitimacy; this act symbolizes a recognition of the elected representative as having rightful power over a population. However, choosing not to vote can be seen either as a form of expression of one's preference as they would rather give up their power to someone else, but it can also be argued to be a form of protest against this process. In any case, silence is hard to interpret and abstention from vote is dangerous to the legitimacy of a regime precisely for its unpredictability. Also, one can still give up their voting power in a mandatory voting system with a "None of the above" ballot response. However, this brings us back to the original problem as many interpretations for the "None of the above" option can be imagined, especially if voting is compulsory. For the above reasons, I conclude that the legitimacy of a state using a compulsory voting model does not variate with turnout rates but that uncertainties related to abstention of vote in voluntary voting systems translates to null ballots in mandatory ones.

In conclusion, the examination of compulsory voting in Brazil illuminates an intricate relation between habit formation, electoral engagement and representation. Throughout this paper, we have dissected the different aspects of Brazil's mandatory voting system and established its formation, the goals it hoped to achieve that way, and the consequences of its implementation. Championed as a means to boost democratic participation and ensure equitable representation,

research from various political scientists have instead revealed its detrimental nature. Evidence suggests the transformative potential of mandatory voting is limited, and the debate surrounding the moral, ethical and practical dimensions of compulsory voting further underscores the nuanced advantages of this policy. Ultimately, underlying challenges regarding low turnout problems and unequal representation remain unsettled due to the lack of concluding evidence, but this alternative opens the path for new reflections on the role of the state and the importance of elections.

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Arthur Barrier